



POLICE DEPARTMENT

April 17, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202207257 (Incident Date: October 20, 2022) regarding Lieutenant Ana Rivera, Tax No. 943735 (DADS No. 2024-29853)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202207257, pertaining to Lieutenant Ana Rivera. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Lieutenant Rivera would be detrimental to the Police Department's disciplinary process.

On October 20, 2022, Lieutenant Rivera was assigned as the desk officer inside the 42nd Precinct station house. At some point, an individual entered the station house to make a complaint regarding a police interaction he observed involving an unrelated individual. That incident occurred earlier in the day. While inside the precinct, the individual was using his phone to capture images of the two officers who were involved in the earlier interaction. After being ordered to leave the precinct by numerous officers, the individual was arrested for trespass. Immediately upon being handcuffed, the individual refused to walk, dropped his legs and fell to the ground where he remained for over twenty-five minutes, until he was required to be carried out to the ambulance and transported to the hospital. Since he was already under arrest, Lieutenant Rivera was justified in her decision to send the individual to the hospital since he was a prisoner acting irrationally within a police facility.¹ Subsequently, a medical treatment of prisoner form was prepared and an officer escorted the handcuffed prisoner to the hospital for evaluation and back to the command for arrest

1. It should be noted that the individual stated in his CCRB interview that he refused to leave the precinct when told to do so by officers and was arrested and leg shackled before the ambulance was called.

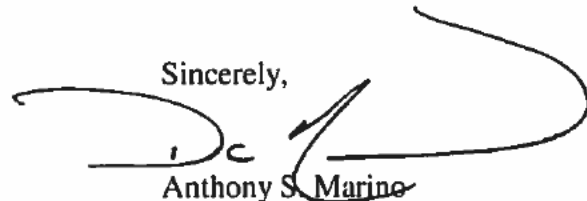
processing upon release.

All police procedures followed in regard to this individual were consistent with a Prisoner Requiring Medical/Psychiatric Treatment as set forth in Patrol Guide Procedure No. 210-04, rather than Patrol Guide Procedure No. 221-13 (Mentally Ill or Emotionally Disturbed Persons). Therefore, there is no requirement that the individual be mentally ill, temporarily deranged and is conducting themselves in a manner which a police officer reasonably believes is likely to result in serious injury to himself or others once they are a prisoner in police custody. Therefore, the prisoner's actions within the police facility, as depicted on several officers' body worn cameras, were sufficient for Lieutenant Rivera to conclude that he required removal to the hospital for evaluation.

Separate and apart from the above, the Police Commissioner agrees with CCRB, that Lieutenant Rivera did not properly process the individual's complaint and discipline is warranted.²

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to direct the issuance of a Schedule "B" Command Discipline for the allegation of failing to process civilian complaints. Additionally, the Police Commissioner intends to impose no disciplinary action for the allegation that Lieutenant Rivera forcibly removed an individual to the hospital.

Sincerely,

A handwritten signature in black ink, appearing to read "Anthony S. Marino", is written over the typed name. The signature is fluid and cursive, with a large loop at the end.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

2. The individual's complaint was taken at the command when he returned six days later.



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
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NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
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ARVA RICE
INTERIM CHAIR

April 18, 2024

The Honorable Edward Caban
Police Commissioner
New York City Police
Department One Police Plaza
New York, New York 10038

RE: CCRB v. Lt. Ana Rivera
CCRB Case No. 202207257

Dear Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated April 17, 2024¹, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to retain jurisdiction over this matter and issue a Schedule “B” Command Discipline with an unspecified penalty against Lieutenant (“Lt.”) Ana Rivera. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding (hereinafter referred to as the “MOU”) between CCRB and the New York City Police Department. I am responding to Deputy Chief Marino’s notification.

For Specification one (1) the Commissioner agrees that Lt. Rivera did not properly process the individual’s complaint and discipline is warranted and intends to direct the issuance of a Schedule “B” Command Discipline.

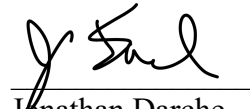
Regarding Specification two (2) Deputy Chief Marino states that “All police procedures followed in regard to this individual were consistent with a Prisoner Requiring Medical/Psychiatric Treatment as set forth in Patrol Guide Procedure 210-04.” CCRB disagrees with this determination.

For Specification two (2), it is undisputed that § 87(2)(b) did not want to be removed to the hospital and refused to leave the precinct. Additionally, BWC confirms that while § 87(2)(b) had previously physically resisted arrest and was passively resisting by refusing to stand up, there was no indication that § 87(2)(b) was any danger to himself or others, attempted suicide, was extremely violent or exhibited irrational behavior, per the Patrol Guide Section 210-04. Furthermore, Lt. Rivera demonstrated a lack of understanding of the Patrol Guide when she testified that it was ultimately her decision to have § 87(2)(b) removed to the hospital, rather than EMS.

¹ Of note, the statute of limitations for the allegations set forth in the Charges and Specifications, is April 20, 2024, however, the letter was received on April 17, 2024. Therefore, CCRB again requests that these provision letters be sent with adequate time to respond as per the Memorandum of Understanding.

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, based upon the foregoing, and in the interest of justice, it is respectfully requested that you permit CCRB to pursue Charges and Specifications against Lieutenant Rivera in this matter.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "Jonathan Darche", positioned above a horizontal line.

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

April 19, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202207257 (Incident Date: October 20, 2022) regarding Lieutenant Ana Rivera, Tax No. 943735 (DADS No. 2024-29853)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated April 18, 2024, concerning the Civilian Complaint Review Board ("CCRB") case involving Lieutenant Ana Rivera, and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Lieutenant Rivera for the reasons expressed in my April 17, 2024 letter.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, now directs the issuance of a Schedule "B" Command Discipline with the forfeiture of five (5) vacation days for the allegation of failing to process civilian complaints. Additionally, the Police Commissioner directs that no disciplinary action be imposed for the allegation that Lieutenant Rivera forcibly removed an individual to the hospital.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office